

24VECV06571 24VECV06571

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-11

Motion: GENERAL MOTORS LLC'S MOTION TO TAX OR STRIKE COUNSEL'S MEMORANDUMS OF COSTS

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Case Number: 24VECV06571 Hearing Date: September 11, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ANGELA A.

PESNILYAN, an individual, and

MACROWN TRANSPORTATION, INC., a

business entity, for unknown,

Plaintiffs,

vs.

GENERAL MOTORS, LLC, a limited liability

company; CASA DE CADILLAC, a business

entity, form unknown and DOES 1 through
50,

inclusive,

Defendants.

CASE NO: 24VECV06571

[TENTATIVE]

ORDER RE:

GENERAL

MOTORS LLC'S MOTION

TO

TAX OR STRIKE COUNSEL'S

MEMORANDUMS

OF COSTS

Dept. W

8:30 a.m.

September 11, 2026

[TENTATIVE] ORDER:

Background

This is a lemon law case. Plaintiffs Angela Pesnilyan and Macrown Transportation, Inc. allege that on March 5, 2024, they purchased a vehicle manufactured by Moving Defendant General Motors, LLC. Plaintiffs allege that the vehicle exhibited numerous defects that could not be cured after a reasonable number of repair attempts.

On December 30, 2024, Plaintiffs filed suit, alleging multiple violations of the Song Beverly Act.

On December 4, 2025, the parties settled this case out of court.

On May 29, 2026, Plaintiffs filed two memoranda of costs, one for each law firm they retained for this case.

On June 9, 2026, Moving Defendant General Motors LLC filed a motion to

tax costs as to both memoranda.

Discussion

Moving Defendant moves to tax the costs requested by both of Plaintiffs' law firms. (Mot. to Tax, p. 2:2-11.)

i)

Procedural Issues

Before the Court can analyze this motion on the merits, it must address two threshold procedural issues.

First, Moving Defendant argues that Plaintiffs' motion is untimely. (Id. p. 3:3-11.) Under CRC Rule 3.1700, "[a] prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (CRC Rule 3.1700(a)(1).)

Moving Defendant argues that because dismissal was requested on December 11, 2025, that Plaintiffs' May 29, 2026, filing is untimely. (Mot. to Tax, p. 2:9-11.) The Court disagrees. The fifteen day timer under CRC Rule 3.1700 does not start until service of notice of entry of judgment, not the request for dismissal. Moving Defendant provides no evidence that this service actually occurred. (Mot. to Tax, p. 2:2-11.) Having reviewed the docket, the Court finds that this case was not dismissed until April 7, 2026. (Minute Order 4/7/26.) Further, there is no indication that the clerk served this dismissal on Plaintiffs. Thus, the 180-day timer applies. This means that Plaintiffs' memoranda, filed May 29, 2026, are timely.

Second, Plaintiffs argue that Moving Defendant's motion is procedurally improper because it does not contain a notice of the hearing for the motion. Under CRC Rule 3.1112, "[u]nless otherwise provided by the rules in this division, the papers filed in support of a motion must consist of at least the following: (1) A notice of hearing on the motion." (CRC Rule 3.1112(a)(1).) Here, Moving Defendant's motion is limited to the motion itself. (See generally, Mot. to Tax.)

The Court agrees that Moving Defendant should have included this notice

of the hearing as a separate part of this filing. However, the Court also notes that Moving Defendant's papers substantially comply with the purpose of the notice requirement, as the first page indicates the date, time, and location of the hearing on the motion. Additionally, Plaintiffs were able to file a full Opposition to this motion, meaning they have not been prejudiced by this minor procedural error. For these reasons, the Court will consider the motion on the merits.

ii)

The Merits of the Motion to Tax Costs

Moving Defendant moves to tax \$1,789.47 of Plaintiffs' \$2,322.32 requested costs. (Mot.to tax, p. 2:1-4.)

a) Costs are Awardable

First, the Court must determine whether costs are awardable. Plaintiff in this case is the prevailing party in a Song-Beverly action. Under CIV § 1794(d), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses." (CIV § 1794(d).) Thus, costs are awardable here.

b) Analysis

Next, the Court will analyze the motion itself. Typically, in a ruling on a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face; if so, the burden is on the objecting party to show the costs to be unnecessary and unreasonable. Where costs are not expressly allowed by statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary. (Foothill-De Anza Comm College Dist. v Emerich (2007) 158 Cal.App.4th 11, 29.) In other words, the Court has the power to disallow costs that are "allowable as a matter of right" when they are not "reasonably necessary." (Perko's Enterprises Inc. v. RRNS Enter. (1992) 4 Cal.App.4th 238, 245.)

However, the case at hand is a Song-Beverly case. This means the controlling statute is CIV § 1794(d). Under CIV § 1794(d), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the

court to recover as part of the judgment a sum equal to the aggregate amount of costs . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (CCP § 1794(d).) Thus, the only analysis this Court must engage in is whether the costs requested were “reasonably incurred.”

As Plaintiffs point out in their Opposition, "A verified memorandum of costs is prima facie evidence of the propriety' of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486.) However, "if the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 624.) Here, Moving Defendant has raised multiple objections to Plaintiff's requested costs. Thus, the burden is on Plaintiff to establish that these costs were reasonably incurred.

1) Wirtz Law Costs

Moving Defendant objects to all \$1,454.72 in costs requested by Plaintiffs' counsel Wirtz Law. (Mot. to Tax, p. 4:11-12.)

First, Moving Defendant objects to Plaintiffs' request for \$60 for the filing fee associated with Plaintiffs' Motion for Attorney Fees. (Id. p. 4:14-16.) At the time this motion to strike was filed, Plaintiffs had not yet filed their Motion for Attorney Fees. However, it has now been filed. Filings are required of every litigant in a case, as documents need to be filed with this Court. Thus, these are standard fees that should be expected of litigation and are therefore reasonably incurred. Additionally, the Court notes that filing costs are allowable under CCP § 1033.5(a)(1). While this statute does not control in the instant motion, the inclusion of filing fees suggests that California courts presume these costs as reasonably incurred. Additionally, Plaintiffs provide copies of bills and invoices for these costs. (Rotman Decl. Exs. 2-7.) For these reasons, the Court finds these costs reasonably incurred.

Second, Moving Defendant objects to Plaintiffs' request for \$625 for an anticipated court reporter fee for the upcoming motion for attorney fees. (Mot. to Tax, p. 4:17-20.) While the Motion for Attorney Fees has not been heard yet, the Court recognizes the need for attorneys to use court reporters to establish

a record for their substantive motions. Additionally, the Court notes that court reporter fees are allowable costs under CCP § 1033.5(a)(11). While this statute does not control in the instant motion, the inclusion of court reporter fees suggests that California courts presume these costs as reasonably incurred. For these reasons, the Court finds these cost to be reasonably incurred for now. However, if the Court determines after the October hearing on this motion that this cost was not, in fact, incurred, the Court will modify this order.

Third, Moving Defendant objects to Plaintiffs' request for \$426.50 in electronic filing fees. (Mot. to Tax, p. 4:21-26.) The Court disagrees. Electronic filings are required of every litigant in a case, as documents need to be filed with this Court. Thus, these are standard fees that should be expected of litigation and are therefore reasonably incurred. Additionally, the Court notes that filing costs are allowable under CCP § 1033.5(a)(14). While this statute does not control in the instant motion, the inclusion of e-filing fees suggests that California courts presume these costs as reasonably incurred. Additionally, Plaintiffs provide copies of bills and invoices for these costs. (Rotman Decl. Exs. 2-7.) That said, Plaintiffs in their Opposition agree to reduce these costs by \$64.70 for an un-incurred e-filing cost related to one of the memoranda of costs. (Opp. p. 6:2-4.) Thus, the Court will strike these requested costs by \$64.70. The remaining costs are found to have been reasonably incurred.

Fourth, Moving Defendant objects to Plaintiffs' request for \$343.22 in "other" costs, explained as \$280 in courtesy copies, and \$63.22 for "research". (Mot. to Tax, pp. 4:27-5:3.) The Court finds these costs were reasonably incurred. This Court requires parties to file courtesy copies, thus these costs were reasonably incurred. Additionally, Plaintiffs provide an invoice they received from Westlaw for research they conducted when researching the Motion to Enforce Settlement that was filed, but later withdrawn in this case. (Rotman Decl. Ex. 7.) Based on this evidence, the Court finds these costs were reasonably incurred.

In summary, the Court GRANTS the Motion to Tax as to the Wirtz Law Memorandum of Costs in the amount of \$64.70.

2) Norman Taylor and
Associates Costs

Next, Moving Defendant objects to \$334.75 in costs requested by

Plaintiffs' counsel Normal Taylor and Associates. (Mot. to Tax, p. 5:6-7.)

First, Moving

Defendant objects to Plaintiffs' request for \$150 in jury fee costs. (Id. p. 5:8-13.) Moving

Defendant argues that because no jury was called in this matter, this cost was not reasonably incurred. (Ibid.) Moving Defendant cites to Perko's Enterprises Inc. v. RRNS Enterprises in support of this argument. (Ibid.)

The Court disagrees. To begin, Defendant misstates the law. Perko's in no way holds that jury fees are recoverable only when a trial actually occurs. In fact, the only mention of "jury fees" in Perko's is in a footnote that quotes the following language from CCP § 1033.5(a): "[t]he following items are allowable as costs under Section 1032: "(1) Filing, motion, and jury fees." (Perko's Enterprises Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, fn. 5.) Thus, Defendant's misleading citation holds no weight here. Additionally, under CCP § 631, jury fees must be paid by the first case management conference in the action. (CCP § 631.) Thus, if Plaintiff wished to be entitled to a jury trial, they had to pay this fee early in the case's lifespan. Therefore, the fee was reasonably necessary for the litigation of the case. For these reasons, the Court declines to tax these costs.

Second, Moving Defendant objects to Plaintiffs' request for \$85.07 in service of process costs. (Mot. to Tax, p. 5:14-19.) Moving Defendant argues that the cost of serving a subpoena on a non-party dealership Casa De Cadillac did nothing to advance this case. (Ibid.) The Court disagrees. Dealership Casa De Cadillac is a named Defendant in this case. Additionally, service of process costs are listed in CCP § 1033.5 as recoverable costs. (CCP § 1033.5(a)(4).) While this statute does not control in the instant motion, the inclusion of service fees suggests that California courts presume these costs are reasonably incurred. Thus, the Court declines to strike these costs.

Third, Moving Defendant objects to Plaintiffs' request for \$99.68 in electronic filing fees. (Mot. to Tax, p. 5:20-25.) As explained above, the Court notes that electronic filings are required of every litigant in a case, as documents need to be filed with this Court. Thus, these are standard fees that should be expected of litigation and are therefore reasonably incurred. Additionally, the Court notes that filing costs are allowable under CCP § 1033.5(a)(14). While this statute does not control in the instant motion, the inclusion of e-filing fees suggests that California courts presume these costs as reasonably incurred. Thus, the Court Declines to strike these costs.

In summary, the Court DENIES the Motion to Tax as to the Norman Taylor & Associates Memorandum of Costs.

Conclusion

The Court GRANTS the Motion to Tax as to the Wirtz Law Memorandum of Costs in the amount of \$64.70. The Court finds all other costs reasonably incurred.

IT
IS SO ORDERED, Moving Defendant TO GIVE NOTICE.

September 11, 2026

Judge of the Superior Court